

Opinion of the Court

the decision in *Hans* is a disservice to the Court's traditional method of adjudication. See *post*, at 120–123.

The dissent mischaracterizes the *Hans* opinion. That decision found its roots not solely in the common law of England, but in the much more fundamental “‘jurisprudence in all civilized nations.’” *Hans*, 134 U. S., at 17, quoting *Beers v. Arkansas*, 20 How. 527, 529 (1858); see also *The Federalist* No. 81, p. 487 (C. Rossiter ed. 1961) (A. Hamilton) (sovereign immunity “is the general sense and the general practice of mankind”). The dissent’s proposition that the common law of England, where adopted by the States, was open to change by the Legislature is wholly unexceptionable and largely beside the point: that common law provided the substantive rules of law rather than jurisdiction. Cf. *Monaco, supra*, at 323 (state sovereign immunity, like the requirement that there be a “justiciable” controversy, is a constitutionally grounded limit on federal jurisdiction). It also is noteworthy that the principle of state sovereign immunity stands distinct from other principles of the common law in that only the former prompted a specific constitutional amendment.

Hans—with a much closer vantage point than the dissent—recognized that the decision in *Chisholm* was contrary to the well-understood meaning of the Constitution. The dissent’s conclusion that the decision in *Chisholm* was “reasonable,” *post*, at 106, certainly would have struck the Framers of the Eleventh Amendment as quite odd: That decision created “such a shock of surprise that the Eleventh Amendment was at once proposed and adopted.” *Monaco, supra*, at 325. The dissent’s lengthy analysis of the text of the Eleventh Amendment is directed at a straw man—we long have recognized that blind reliance upon the text of the Eleventh Amendment is “‘to strain the Constitution and the law to a construction never imagined or dreamed of.’” *Monaco, supra*, at 326, quoting *Hans, supra*, at 15. The text dealt in terms only with the problem presented by the decision in *Chisholm*; in light of the fact that the federal courts did not